AMENDED IN SENATE MAY 23, 2025

AMENDED IN SENATE MARCH 26, 2025

SENATE BILL No. 524

Introduced by Senator Arreguín

February 20, 2025

An act to add Section 13663 to the Penal Code, relating to law enforcement agencies.

LEGISLATIVE COUNSEL'S DIGEST

SB 524, as amended, Arreguín. Law enforcement agencies: artificial intelligence.

Existing law generally provides for the regulation of law enforcement agencies, including, among other things, requiring each local law enforcement agency to conspicuously post on their internet websites all current standards, policies, practices, operating procedures, and education and training materials that would otherwise be available to the public under specified circumstances.

This bill would require each law enforcement agency to maintain a policy to require an official report prepared by a law enforcement officer or any member of a law enforcement agency *that is generated using artificial intelligence either fully or partially* to include specified information on each page, including a disclosure statement, ~~if the report was generated in a draft, interim, or final form using artificial intelligence either fully or partially.~~ *and the signature of the law enforcement officer or member of a law enforcement agency who prepared the report, as specified.* If an officer or any member of an agency uses artificial intelligence to create an official report, the bill would require ~~all drafts created before the final report to be retained in a manner that allows ready access and for as long as the final report is~~

~~retained.~~ *the first draft created to be retained for as long as the final report is retained.* The bill would require the program used to generate a draft, interim, or final report to maintain an audit trail that identifies, at a minimum, certain things, including the person who used artificial intelligence to create a report. The bill would define terms for purposes of these provisions.

By requiring local law enforcement agencies to adopt a new policy, this bill would impose a state-mandated local program.

The California Constitution requires the state to reimburse local agencies and school districts for certain costs mandated by the state. Statutory provisions establish procedures for making that reimbursement.

This bill would provide that, if the Commission on State Mandates determines that the bill contains costs mandated by the state, reimbursement for those costs shall be made pursuant to the statutory provisions noted above.

Vote: majority. Appropriation: no. Fiscal committee: yes. State-mandated local program: yes.

The people of the State of California do enact as follows:

SECTION 1. Section 13663 is added to the Penal Code, to read:

13663. (a) Each law enforcement agency shall maintain a policy to require an official report prepared by a law enforcement officer or any member of a law enforcement agency that is generated ~~in a draft, interim, or final form~~ using artificial intelligence either fully or ~~partially, to, on each page of the report, identify every specific artificial intelligence program used and prominently state the following:~~ *partially to contain both of the following:*

(1) On each page of the report, identify every specific artificial intelligence program used and prominently state the following:

"This report was written either fully or in part using artificial intelligence."

(2) The signature of the law enforcement officer or member of a law enforcement agency who prepared the report, either in physical or electronic form, verifying that they reviewed the contents of the report and that the facts contained in the report are true and correct.

(b) If a law enforcement officer or any member of a law enforcement agency uses artificial intelligence to create an official report, whether fully or partially, ~~all drafts created before the final report shall be retained in a manner that allows ready access. The program used to generate the draft shall retain all changes made to the artificial-intelligence-generated report by the person preparing the draft or report. The documents described in this section shall be retained for as long as the final report is retained.~~ *the first draft created shall be retained for as long as the final report is retained.*

(c) The program used to generate a draft, interim, or final report shall maintain an audit trail that, at a minimum, identifies all of the following:

(1) The person who used artificial intelligence to create a report.

(2) The person who made any changes to a report.

(3) The video and audio footage used to create a report.

(d) For purposes of this section, the following definitions apply:

(1) "Artificial intelligence" means an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments. *"Artificial intelligence" as used in this section applies to artificial intelligence systems that automatically draft police report narratives based upon an analysis of in-car or dash-mounted cameras, or body-worn camera audio or video, and artificial intelligence systems that analyze a law enforcement officer's dictated report to generate a police report narrative automatically enhanced by generative artificial intelligence.*

(2) "Law enforcement agency" means any department or agency of the state or any local government, special district, or other political subdivision thereof, that employs any peace officer, as described in Section 830.

SEC. 2. If the Commission on State Mandates determines that this act contains costs mandated by the state, reimbursement to local agencies and school districts for those costs shall be made pursuant to Part 7 (commencing with Section 17500) of Division 4 of Title 2 of the Government Code.

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